Response to an Employment Tribunal Claim

Form ET3

Case number: 2204187/2025 · Tribunal office: London Central · Date received: 16 December 2025

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1 Respondent's details

1.1 Name of organisation: Wexford Holdings Limited (company number 06122418)

1.2 Address: Marlowe House, 4 Fenchurch Avenue, London EC3M 5BN

1.3 Representative: Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ (ref SW/TG/WC-00106)

1.4 Contact for documents: tom.gallagher@whitfieldcarter.com

2 Employment details

2.1 Are the dates of employment given by the claimant correct? Yes — 1 September 2014 to 31 October 2025.

2.2 Is the claimant's description of job and pay correct? Job title agreed. Gross pay of £185,000 per annum agreed.

2.3 Are the claimant's ACAS early conciliation details correct? Yes.

3 Response to the claim — grounds of resistance

3.1 The respondent resists the claims in their entirety. The respondent denies that the claimant was unfairly dismissed and denies that age was a factor in any decision concerning the claimant.

3.2 Reason for dismissal. In June 2025 the Board approved a strategic review of the Group's operating model. As a result of that review the respondent concluded that the operations function should be restructured and that the role of Chief Operating Officer, in its existing form, was no longer required. The claimant was dismissed by reason of redundancy and/or some other substantial reason of a kind such as to justify the dismissal of an employee holding the position which the claimant held, within section 98(1) and (2) of the Employment Rights Act 1996. The reorganisation was a genuine business reorganisation undertaken for sound commercial reasons.

3.3 Procedure. The respondent followed a fair procedure. The claimant was consulted about the proposed changes, his grievance dated 12 September 2025 was considered and responded to, and the position was confirmed only after that process. The respondent considered whether any suitable alternative role was available and concluded that there was none commensurate with the claimant's seniority. The dismissal was within the range of reasonable responses available to a reasonable employer.

3.4 Age discrimination denied. The respondent denies that the claimant was subjected to any less favourable treatment because of age. The changes to the claimant's role formed part of the reorganisation described above and were not connected to his age. The remark attributed to a member of the executive team on 28 August 2025 is not admitted; if any such words were used, they did not bear the meaning the claimant attaches to them and were not the reason for, or connected with, any decision affecting the claimant's employment. The decision-makers will give evidence that age played no part in their decisions.

3.5 The respondent did not at any time form, or act upon, any view that the claimant should be removed because of his age, and the respondent's decisions were taken for the age-neutral business reasons set out above. To the extent that the burden of proof passes to the respondent under section 136 of the Equality Act 2010 (which is not admitted), the respondent will discharge it.

3.6 Remedy. The respondent does not admit that the claimant has suffered the losses claimed, which are not admitted and must be proved. The claimant is put to proof of mitigation of loss. The respondent will contend that any compensatory award for unfair dismissal is subject to the statutory cap and, if and to the extent that a fair procedure would or might have resulted in the same outcome, falls to be reduced in accordance with Polkey v A E Dayton Services Ltd.

3.7 Save as expressly admitted, each and every allegation in the claim is denied. The respondent reserves the right to amend this response and to provide further particulars.

Signed: Whitfield Carter LLP, for and on behalf of the respondent

Date: 16 December 2025